THE PROSECUTOR GENERAL OF ZIMBABWE
versus
GERALD RUTIZIRA
and
REGIONAL MAGISTRATE M. SHOTGAME N.O.

HIGH COURT OF ZIMBABWE
MANYANGADZE J
HARARE, 24 March & 23 July 2026

Opposed application

F. Nyahunzvi, for the applicant
Z. Dumbura, for the 1st respondent

MANYANGADZE J: This is a chamber application for leave to appeal against the acquittal of the first respondent by the second respondent.

The first respondent ("the accused") was arraigned before the second respondent, a Harare Regional Magistrate, on charges of Robbery as defined in s 126 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] and Money Laundering and Proceeds of Crime Act [*Chapter 9:24*]. The robbery, which involved the use of firearms, occurred along the Harare-Chirundu highway on 6 January 2021. A cash-in-transit vehicle with US$2 775 000,00 belonging to ZB bank was ambushed and the cash stolen, among other items.

During the period 6 January to 8 January 2021, upon his arrest, the first respondent was found in possession of cash in the amount of US$96 100,00 and a Toyota Hiace commuter omnibus which he had just purchased. This was the basis of the second charge.

The accused was discharged at the close of the State case and acquitted of both charges.

The applicant ("the State") intends to appeal against the first respondent's acquittal on the second charge, i.e. the money laundering charge.

The grounds of appeal, as per the draft notice of appeal, are stated as follows;

> "1. The court misdirected itself and erred in acquitting the Respondent on Money Laundering charges when the State had proved beyond a reasonable doubt that the Respondent had no legal and legitimate source of the US$96 100 which was in his possession.
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> 2. The court erred and misdirected itself in concluding the money was earned through a legitimate business of a car sales and sale of residential stands when evidence showed that this was not the position.
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> 3. The court *a quo* erred and misdirected itself when it made a finding that money was being kept by the Respondent on behalf of a cooperative, when it did not make a finding based on the evidence presented whether the cooperative actually existed.
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> 4. The court *a quo* erred and misdirected itself by failing to appreciate that an amount of US$96 100,00 cannot be kept in a wardrobe for any lawful purpose taking into account that no legal and legitimate source of the money had been established."

The State contends that the court *a quo* erred and misdirected itself when it made factual findings without any evidence before it supporting those findings. The first respondent was found with a large amount of cash, which was kept in a wardrobe. The State avers that the only reasonable inference is that the cash was illegitimately acquired and the accused wanted to hide its origins.

In countering the State's averments, the accused contends that the money laundering charge arose out of the robbery charge. His acquittal on the robbery charge must lead to the collapse of the money laundering charge.

The accused further contends that the State led no evidence on the money laundering charge. It failed to discharge the onus resting on it to prove its allegations beyond a reasonable doubt. The evidence placed before the court must have been such that no reasonable court would have acquitted the accused.

The law governing appeals by the State emanating from the Magistrates Court is provided for in s 61 of the Magistrates Court Act [*Chapter 7:10]*. It reads as follows:

> "If the Prosecutor-General is dissatisfied with the judgment of a court in a criminal matter
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> (a) upon a point of law; or
>
> (b) because it has acquitted or quashed the conviction of any person who was the accused in the case on a view of the facts which could not reasonably be entertained; he may, with the leave of a judge of the High Court, appeal to the High Court against that judgment:"

In the case of *Attorney General* v *Paweni Trade Corp (Pvt) Ltd* 1990(1) ZLR 24, the Supreme Court held that;

> "It is only when the inference drawn from the primary facts is so inconsistent with logic and common sense that the Attorney General can succeed …… if there are reasonable grounds for taking certain facts into consideration, and on the facts, when taken together, point inexorably to the guilt of the accused beyond per adventure, but the trial court nonetheless acquits the accused, then the trial court has taken a view of the facts which could not reasonably be entertained. Put another way, if, on a view of the facts, the court could not reasonably have inferred the innocence of the accused, then the verdict of the acquittal is perverse, and the Attorney General is entitled to attack it."

It can thus be stated that the fundamental test is whether the court *a quo* took a view of the facts that could not be reasonably entertained when it reached the decision to acquit the accused. This is the approach when the intended appeal is based on s 61(b). Under s 61(a), the State will be raising a point of law, which is not the basis *in casu.*

In applying the law, one must look at the established facts. The accused was found in possession of US96 000,00 cash, and a recently purchased combi. It seems the thrust of the State's allegations is more on the cash than the motor vehicle.

It seems to me, from a perusal of the magistrate's reasons for judgment, he viewed the facts in light of the robbery charge. There was not much consideration on the money laundering charge. He reasoned that the recovered property, though it raises strong suspicion, is not proof that the accused perpetrated the robbery. The facts, it seems to me, were not assessed in light of the money laundering charge. The rather simplistic approach was that if the accused is not guilty of the robbery, then he is not guilty of money laundering. That is the thrust of the accused's argument. He contends that his acquittal on the robbery charge must inevitably result in the collapse of the money laundering charge.

I am unable to uphold that contention. Money laundering has been preferred against the accused as a distinct and separate charge. The essential elements for robbery and money laundering are different. The facts on which it (money laundering) is predicated must be viewed against that charge. US$96 000,00, in cash, is a huge amount of money. It was stashed in a wardrobe. There must be a satisfactory explanation for its acquisition. It is one of those offences where, if certain essential facts are established by the State, there is, as it were, a reverse onus in terms of which the accused must give an explanation that satisfactorily negatives the presumption of guilt.

The explanation proffered was that the accused runs a car sales business and is chairman of a housing co-operative. Not even a single receipt or invoice was placed before the court to substantiate this explanation. The explanation for this was that the police

confiscated all his documentation and it was in the impounded vehicle. It is inconceivable all his business transactions went with that vehicle. It is also inconceivable the prosecution could persist with the money laundering charge if the exhibits allegedly seized included receipts and invoices showing the accused's business transactions. The prosecution persisted, it can be reasonably concluded, because there was no paper trail whatsoever of the accused's alleged business transactions.

In the circumstances, the State cannot be faulted for seeking leave to appeal against the accused's acquittal. The application must succeed. It must be pointed out that this court is not presiding over the appeal in question. It is only considering the prospects of success in light of the applicable test as laid down by law. Definitive findings will be made by the court ultimately seized with the appeal after the appeal is comprehensively argued by the parties.

In the parties' submissions, there is reference to a counter application by the respondent. I pointed out to the parties, during the hearing of this application, that I dealt with that application and rendered judgment. It is not clear why the parties continue to argue the matter.

In the said application, the respondent herein, as applicant, sought an order of contempt of court against the applicant herein together with other respondents. I heard the matter under HCH 4598/25 *Gerald Rutizira* v *Minister of Home Affairs and Cultural Heritage & Ors*, and rendered a judgment in which I struck the matter off the roll, having found that the applicant had not exhausted domestic remedies. The parties should be guided by that judgment (HH 895/25) accordingly.

In the instant matter, for the reasons already stated, the application succeeds.

In the result, it is ordered that:

1. The applicant be and is hereby granted leave to appeal against the acquittal of the first respondent by the second respondent sitting at Harare on the 26th of June, 2025 in case CRB. No. HRER 484/21.

2. The Applicant shall file the Notice of Appeal within 10 days of this order.

MANYANGADZE J……..

National Prosecuting Authority, applicant's legal practitioners
Gijima, Gashirai, Gatawa, first respondent's legal practitioners